

# ITC(HS), 2022

## Schedule 1 Import Policy

**Section IV, PREPARED FOODSTUFFS; BEVERAGES, SPIRITS AND VINEGAR; TOBACCO AND MANUFACTURED TOBACCO SUBSTITUTES; PRODUCTS, WHETHER OR NOT CONTAINING NICOTINE, INTENDED FOR INHALATION WITHOUT COMBUSTION; OTHER NICOTINE CONTAINING PRODUCTS INTENDED FOR THE INTAKE OF NICOTINE INTO THE HUMAN BODY**

| Main Notes |                                                                                                                                                                                          |                  |                   |
|------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------|
| Sl.No.     | Notes                                                                                                                                                                                    | Notification No. | Notification Date |
| 1          | In this Section the term "pellets" means products which have been agglomerated either directly bycompression or by the addition of a binder in a proportion not exceeding 3 % by weight. |                  |                   |

### Chapter 21 Miscellaneous Edible Preparations.

| Main Notes |                                                                                                                                                                                                                                                                                                                                                                               |                                  |                   |
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| Sl.No.     | Notes                                                                                                                                                                                                                                                                                                                                                                         | Notification No.                 | Notification Date |
| 1          | 1. This Chapter does not cover:<br>(a) mixed vegetables of heading 0712;<br><br>(b) roasted coffee substitutes containing coffee in any proportion (heading 0901);<br><br>(c) flavoured tea (heading 0902);<br><br>(d) spices or other products of headings 0904 to 0910;<br><br>(e) food preparations, other than the products described in heading 2103 or 2104, containing | Notification No.<br>54/2015-2020 |                   |

|   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |  |
|---|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|
|   | <p>more than 20 % by weight of sausage, meat, meat offal, blood, insects, fish or crustaceans, molluscs or other aquatic invertebrates, or any combination thereof (Chapter 16);</p> <p>(f) products of heading 2404;</p> <p>(g) yeast put up as a medicament or other products of heading 3003 or 3004; or</p> <p>(h) prepared enzymes of heading 3507.</p>                                                                                                                                                                                                                                                                                                                                 |  |  |
| 2 | Extracts of the substitutes referred to in Note 1 (b) above are to be classified in heading 2101.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  |  |
| 3 | <p>For the purposes of heading 2104, the expression "homogenised composite food preparations" means preparations consisting of a finely homogenised mixture of two or more basic ingredients such as meat, fish, vegetables, fruit or nuts, put up for retail sale as food suitable for infants or young children or for dietetic purposes, in containers of a net weight content not exceeding 250g .</p> <p>For the application of this definition, no account is to be taken of small quantities of any ingredients which may be added to the mixture for seasoning, preservation or other purposes. Such preparations may contain a small quantity of visible pieces of ingredients.</p> |  |  |

#### Policy Conditions

| Sl.No. | Notes                                                                                                                                                                                                                                                                                                                                                                        | Notification No. | Notification Date |
|--------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------|
| 1      | Prohibition on import of milk and milk products (including chocolates and chocolate products and candies/ confectionary/ food preparations with milk or milk solids as an ingredient) from China is extended until the capacity of all laboratories at ports of entry have been suitably upgraded for testing melamine                                                       |                  |                   |
| 2      | Import of all live-stock products shall be subject to a sanitary import permit to be issued by Department of Animal Husbandry, Dairying and Fisheries, Government of India, as per Section 3A of Live-stock Importation Act, 1898, as incorporated by Live Stock Importation (Amendment) Act, 2001 (Act No. 28 of 2001, 29th August, 2001), or as amended from time to time. |                  |                   |

#### Supplementary Notes

| Sl.No. | Notes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Notification No. | Notification Date |
|--------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------|
| 1      | In this Chapter, "Pan masala" means any preparation containing betel nuts and any one or more of the following ingredients, namely: lime, katha (catechu) and tobacco whether or not containing any other ingredient, such as cardamom, copra or menthol.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                  |                   |
| 2      | In this Chapter "betel nut product known as Supari" means any preparation containing betel nuts, but not containing any one or more of the following ingredients, namely: lime, katha (catechu) and tobacco whether or not containing any other ingredients, such as cardamom, copra or menthol.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                  |                   |
| 3      | For the purposes of tariff item 2106 90 11, the expression "Sharbat" means any non-alcoholic sweetened beverage or syrup containing not less than 10% fruit juice or flavoured with non-fruit flavours, such as rose, Khus, Kevara, but not including aerated preparations.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                  |                   |
| 4      | Tariff item 2106 90 50, inter alia, includes preparations for lemonades or other beverages, consisting, for example, of flavoured or coloured syrup, syrup flavoured with an added concentrated extract, syrup flavoured with fruit juice and intended for use in the manufacture of aerated water, such as in automatic vending machines.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                  |                   |
| 5      | <p>Heading 2106 (except tariff items 2106 90 20 and 2106 90 30), inter alia, includes:</p> <p>(a) protein concentrates and textured protein substances;</p> <p>(b) preparations for use, either directly or after processing (such as cooking, dissolving or boiling in water, milk or other liquids), for human consumption;</p> <p>(c) preparations consisting wholly or partly of foodstuffs, used in the making of beverages or food preparations for human consumption;</p> <p>(d) powders for table creams, jellies, ice-creams and similar preparations, whether or not sweetened;</p> <p>(e) flavouring powders for making beverages, whether or not sweetened;</p> <p>(f) preparations consisting of tea or coffee and milk powder, sugar and any other added ingredients;</p> <p>(g) preparations (for example, tablets) consisting of saccharin and foodstuff, such as lactose,</p> |                  |                   |

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|   | <p>used for sweetening purposes;</p> <p>(h) pre-cooked rice, cooked either fully or partially and their dehydrates; and</p> <p>(i) preparations for lemonades or other beverages, consisting, for example, of flavoured or coloured syrups, syrup flavoured with an added concentrated extract, syrup flavoured with fruit juices and concentrated fruit juice with added ingredients.</p> |  |  |
| 6 | <p>Tariff item 2106 90 99 includes sweet meats commonly known as "Misthans" or "Mithai" or called by any other name. They also include products commonly known as "Namkeens", "mixtures", "Bhujia", "Chabena" or called by any other name. Such products remain classified in these sub-headings irrespective of the nature of their ingredients.</p>                                      |  |  |

| Product Description and Import Policy |     |                                                                                                                                                                                                                                                           |               |                  |                                         |
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| HS Code                               |     | Description                                                                                                                                                                                                                                               | Import Policy | Policy Condition | Notification No.      Notification Date |
| 2101                                  |     | EXTRACTS, ESSENCES AND CONCENTRATES, OF COFFEE, TEA OR MATE AND PREPARATIONS WITH A BASIS OF THESE PRODUCTS OR WITH A BASIS OF COFFEE, TEA OR MATE; ROASTED CHICORY AND OTHER ROASTED COFFEE SUBSTITUTES, AND EXTRACTS, ESSENCES AND CONCENTRATES THEREOF |               |                  |                                         |
| 210111                                | -   | Extracts, essences and concentrates, of coffee, and preparations with a basis of these extracts, essences or concentrates or with a basis of coffee : -- Extracts, essences and concentrates                                                              |               |                  |                                         |
| 21011110                              | --- | Instant coffee, flavoured                                                                                                                                                                                                                                 | Free          |                  |                                         |
| 21011120                              | --- | Instant coffee, not flavoured                                                                                                                                                                                                                             | Free          |                  |                                         |
| 21011130                              | --- | Coffee aroma                                                                                                                                                                                                                                              | Free          |                  |                                         |
| 21011190                              | --- | Other                                                                                                                                                                                                                                                     | Free          |                  |                                         |
| 21011200                              | -   | Extracts, essences and concentrates, of coffee, and preparations with a basis of                                                                                                                                                                          | Free          |                  |                                         |

|          |     |                                                                                                                                                                   |      |
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|          |     | these extracts, essences or concentrates or with a basis of coffee : -- Preparations with a basis of extracts, essences or concentrates or with a basis of coffee |      |
| 210120   | -   | Extracts, essences and concentrates, of tea or mate, and preparations with a basis of these extracts, essences or concentrates or with a basis of tea or mate :   |      |
| 21012010 | --- | Instant tea                                                                                                                                                       | Free |
| 21012020 | --- | Quick brewing black tea                                                                                                                                           | Free |
| 21012030 | --- | Tea aroma                                                                                                                                                         | Free |
| 21012090 | --- | Other                                                                                                                                                             | Free |
| 210130   | -   | Roasted chicory and other roasted coffee substitutes, and extracts, essences and concentrates thereof                                                             |      |
| 21013010 | --- | Roasted chicory                                                                                                                                                   | Free |
| 21013020 | --- | Roasted coffee substitutes                                                                                                                                        | Free |
| 21013090 | --- | Other                                                                                                                                                             | Free |
| 2102     |     | Yeasts (active or inactive); other single-cell micro-organisms, dead (but not including vaccines of heading 30.02); prepared baking powders.                      |      |

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| 210210   | -   | Active yeasts                                                                                                         |      |
| 21021010 | --- | Culture yeast                                                                                                         | Free |
| 21021020 | --- | Bakers yeast                                                                                                          | Free |
| 21021090 | --- | Other                                                                                                                 | Free |
| 21022000 | -   | Inactive yeasts; other single-cell micro-organisms, dead                                                              | Free |
| 21023000 | -   | Prepared baking powders                                                                                               | Free |
| 2103     |     | Sauces and preparations therefor; mixed condiments and mixed seasonings; mustard flour and meal and prepared mustard. |      |
| 21031000 | -   | Soya sauce                                                                                                            | Free |
| 21032000 | -   | Tomato ketchup and other tomato sauces                                                                                | Free |
| 21033000 | -   | Mustard flour and meal and prepared mustard                                                                           | Free |
| 210390   | -   | Other                                                                                                                 |      |
| 21039010 | --- | Curry paste                                                                                                           | Free |
| 21039020 | --- | Chilli sauce                                                                                                          | Free |
| 21039030 | --- | Majonnaise and salad dressings                                                                                        | Free |
| 21039040 | --- | Mixed, condiments and mixed seasoning                                                                                 | Free |

|          |     |                                                                                      |            |                                   |              |            |
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| 21039090 | --- | Other                                                                                | Free       |                                   |              |            |
| 2104     |     | Soups and broths and preparations therefor; homogenised composite food preparations. |            |                                   |              |            |
| 210410   | -   | Soups and broths and preparations therefor                                           |            |                                   |              |            |
| 21041010 | --- | Dried                                                                                | Free       |                                   |              |            |
| 21041090 | --- | Other                                                                                | Free       |                                   |              |            |
| 21042000 | -   | Homogenised composite food preparations                                              | Free       |                                   |              |            |
| 21050000 |     | Ice-cream and other edible ice, whether or not containing cocoa                      | Free       |                                   |              |            |
| 2106     |     | Food preparations not elsewhere specified or included.                               |            |                                   |              |            |
| 21061000 | -   | Protein concentrates and textured protein substances                                 | Free       |                                   |              |            |
| 210690   | -   | Other                                                                                |            |                                   |              |            |
| 21069011 | --- | Soft drink concentrates :---- Sharbat                                                | Free       |                                   |              |            |
| 21069019 | --- | Soft drink concentrates :---- Other                                                  | Free       |                                   |              |            |
| 21069020 | --- | Pan masala                                                                           | Free       |                                   |              |            |
| 21069030 | --- | Betel nut product known as                                                           | Prohibited | a) However, import is Free if CIF | 57/2015-2020 | 14/02/2023 |

|          |     |                                                                                                                                                          |      |                                                                                                                                                                                                                                        |
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|          |     | Supari                                                                                                                                                   |      | <p>value is Rs. 351/- or above per Kilogram.</p> <p>b) MIP conditions, however, will not be applicable for imports by 100% Export Oriented Units (EOUs) and units in the SEZ subject to the condition that no DTA sale is allowed.</p> |
| 21069040 | --- | Sugar-syrups containing added flavouring or colouring matter, not elsewhere specified or included; lactose syrup; glucose syrup and malto dextrine syrup | Free |                                                                                                                                                                                                                                        |
| 21069050 | --- | Compound preparations for making non-alcoholic beverages                                                                                                 | Free |                                                                                                                                                                                                                                        |
| 21069060 | --- | Food flavouring material                                                                                                                                 | Free |                                                                                                                                                                                                                                        |
| 21069070 | --- | Churna for pan                                                                                                                                           | Free |                                                                                                                                                                                                                                        |
| 21069080 | --- | Custard powder                                                                                                                                           | Free |                                                                                                                                                                                                                                        |
| 21069091 | --- | Other: ---- Diabetic foods                                                                                                                               | Free |                                                                                                                                                                                                                                        |
| 21069092 | --- | Other: ---- Sterilized or pasteurized millstone                                                                                                          | Free |                                                                                                                                                                                                                                        |
| 21069099 | --- | Other: ---- Other                                                                                                                                        | Free |                                                                                                                                                                                                                                        |